



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session
Majority Research Staff

SB 1635: unlawful alert; arrests

NGUYEN FLOOR AMENDMENT

1. Removes language specifying that *imminent or ongoing effort to arrest* includes surveillance, approach or execution of an arrest warrant by a law enforcement officer.

NGUYEN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1635
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 13, chapter 25, Arizona Revised Statutes, is
3 amended by adding section 13-2515, to read:

4 13-2515. Unlawful alerting of another person to avoid arrest:
5 classification; definitions

6 A. A PERSON COMMITS UNLAWFUL ALERTING OF ANOTHER PERSON TO AVOID
7 ARREST IF THE PERSON, WITH THE INTENT TO HINDER, DELAY OR PREVENT THE
8 LAWFUL ARREST OF THE OTHER SPECIFIC PERSON, KNOWINGLY COMMUNICATES
9 INFORMATION TO THAT OTHER PERSON THAT ALERTS OR WARNS THAT OTHER PERSON OF
10 A REAL-TIME, IMMINENT [OR ONGOING] EFFORT TO ARREST THAT OTHER PERSON BY A
11 LOCAL, STATE OR FEDERAL LAW ENFORCEMENT OFFICER.

12 B. THIS SECTION DOES NOT APPLY TO:

13 1. AN ATTORNEY WHO PROVIDES LAWFUL LEGAL ADVICE TO THE ATTORNEY'S
14 CLIENT.

15 2. A PERSON WHO PROVIDES INFORMATION IN RESPONSE TO A LAWFUL
16 REQUEST BY A LOCAL, STATE OR FEDERAL LAW ENFORCEMENT OFFICER.

17 3. A PERSON'S COMMUNICATION THAT IS MADE WITHOUT KNOWLEDGE THAT THE
18 PERSON WARNED IS THE SUBJECT OF AN ARREST.

19 4. A PERSON'S COMMUNICATION THAT IS MADE WITHOUT THE INTENT TO
20 HINDER, DELAY OR PREVENT THE LAWFUL ARREST OF ANOTHER SPECIFIC PERSON.

21 C. THE ATTORNEY GENERAL OR THE COUNTY ATTORNEY OF THE COUNTY IN
22 WHICH THE OFFENSE OCCURS MAY PROSECUTE VIOLATIONS OF THIS SECTION.

23 D. UNLAWFUL ALERTING OF ANOTHER PERSON TO AVOID ARREST IS A CLASS 1
24 MISDEMEANOR.

25 E. FOR THE PURPOSES OF THIS SECTION:

26 1. "COMMUNICATES" INCLUDES:

27 (a) AN ELECTRONIC COMMUNICATION.

28 (b) A GESTURE.

1 (c) A VERBAL STATEMENT.

2 (d) A SIGNAL OR THE USE OF AMPLIFIED SOUNDS, BELLS, WHISTLES OR
3 SIMILAR DEVICES WHEN USED AS INTENTIONAL SIGNALING.

4 (e) A WRITTEN MESSAGE.

5 (f) ANY OTHER METHOD OF CONVEYING INFORMATION THAT IS NOT LISTED IN
6 SUBDIVISION (a), (b), (c), (d) OR (e) OF THIS PARAGRAPH.

7 2. "IMMINENT OR ONGOING EFFORT TO ARREST" ~~[-~~

8 ~~(a)]~~ MEANS A LAW ENFORCEMENT ACTIVITY THAT OCCURS CONTEMPORANEOUSLY
9 WITH OR IMMEDIATELY PRECEDING AN ATTEMPT TO TAKE A PERSON INTO CUSTODY.

10 ~~[(b) INCLUDES SURVEILLANCE, APPROACH, PURSUIT OR EXECUTION OF AN~~
11 ~~ARREST WARRANT BY A LAW ENFORCEMENT OFFICER.]~~

12 3. "INTENTIONAL SIGNALING" MEANS A PERSON'S DELIBERATE USE OF
13 SOUND, LIGHT, MOVEMENT OR OTHER CONDUCT THAT IS MADE FOR THE PURPOSE OF
14 CONVEYING A WARNING TO OR ALERTING ANOTHER PERSON.

15 4. "LAW ENFORCEMENT OFFICER" MEANS AN INDIVIDUAL WHO IS AUTHORIZED
16 BY LAW TO ENGAGE IN OR SUPERVISE THE PREVENTION, DETECTION, INVESTIGATION
17 OR ENFORCEMENT OF LAWS AND WHO IS EMPLOYED BY OR ACTING ON BEHALF OF A
18 LOCAL, STATE OR FEDERAL GOVERNMENTAL ENTITY.

19 5. "LAWFUL ARREST" MEANS AN ARREST THAT IS SUPPORTED BY LEGAL
20 AUTHORITY AND PROBABLE CAUSE EVEN IF A WARRANT HAS NOT BEEN ISSUED.

21 Sec. 2. Severability

22 If a provision of this act or its application to any person or
23 circumstance is held invalid, the invalidity does not affect other
24 provisions or applications of the act that can be given effect without the
25 invalid provision or application, and to this end the provisions of this
26 act are severable.

27 Enroll and engross to conform

28 Amend title to conform

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